

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Erin Brokate	Team: Team # 2	CCRB Case #: 201116284	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 02/09/2011 6:00 PM	Location of Incident: 108th Street	18 Mo. SOL 8/9/2012	Precinct: 100
Date/Time CV Reported Tue, 12/20/2011 5:43 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 12/20/2011 5:43 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Ronald Luparello	06400	916088	NARCBQN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. Officers			

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Ronald Luparello	Force: Det. Ronald Luparello used physical force against § 87(2)(b)	A . Complaint Withdrawn
B . DT3 Ronald Luparello	Force: Det. Ronald Luparello used a chokehold against § 87(2)(b)	B . Complaint Withdrawn

Case Summary

The following complaint was filed by § 87(2)(b) on December 20, 2011, via the CCRB Call Processing System. On February 9, 2011, at approximately 6:00 p.m., § 87(2)(b) was traveling in his vehicle with an unnamed friend in the vicinity of 108th Street in Queens. His vehicle was stopped by multiple officers who were traveling in a navy blue or black minivan. § 87(2)(b) identified one of the officers by name as Det. Ronald Luparello of Narcotics Borough Queens. Det. Luparello told § 87(2)(b) “Say goodbye to your car.” Det. Luparello slammed § 87(2)(b) to the ground twice and also choked him before placing him under arrest for § 87(2)(b) (Allegations A and B). There were no arrest reports found in connection with this incident. § 87(2)(g)

On January 6, 2011, a first phone call was placed to § 87(2)(b). During this phone call, § 87(2)(b) was explained the investigative process. § 87(2)(b) stated that he did not have the time to pursue a CCRB complaint and that the complaint was no longer a priority for him. He also stated that he did not want to provide an in person statement at the CCRB. § 87(2)(b) stated that he wanted to withdraw this complaint. § 87(2)(b) stated that he was withdrawing the complaint voluntarily and he was not coerced into doing so by any members of the NYPD or the CCRB. This withdrawal was recorded digitally and was reviewed by SI Jessica Pena, who found it to meet agency standards. On January 6, 2011, § 87(2)(b) was mailed a “withdrawal” letter, which will be added to the case file upon it’s receipt.

Due to § 87(2)(b)’s desire to withdraw this complaint, it is therefore recommended that this case be closed as **complaint withdrawn**.

Team: _____

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Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date